

Summary of substantive amendments between the 2021 statement of licensing policy and the 2026 proposed revision

This summary identifies additions, deletions, substantive wording changes, clarifications and takes account of changes in legislation and the introduction of the National Licensing Policy Framework 2025. Minor formatting changes have been excluded.

CATEGORY	2021 POLICY POSITION	2026 PROPOSED REVISION	NATURE OF CHANGE
Background	1.2 paragraph deleted		Deletion
		1.2 Background to the City added	New paragraph
	1.3 paragraph deleted		Deletion
	1.1 reformatted	1.1 reformatted into paras 1.1; 1.3 and 1.4	Reformatting
Introduction	1.1	1.4 j “the provision of late night refreshment” and definition removed	Deletion
		1.4 new paragraph clarifying position when charges are made for entertainment	New paragraph
		1.5 new paragraph clarifying pub games exemptions	New paragraph
		1.6 new paragraph indicating potential exemptions	New paragraph
		1.7 new advisory paragraph pointing to guidance	New paragraph
		1.12 Listing the statutory consultees	New paragraph
	1.8	1.14 Update of potential control mechanisms	Update
Links to other policies and strategies	2 Consultation and links to other policies and strategies	2 Links to other policies and strategies	Numbering and title change
	2.1 Paragraph deleted		Paragraph deleted
		2.7 clarification on arrangements between planning consent and premises licences	Removal of sentence
		2.9 Interaction between Planning and Licensing. This statement of licensing policy complements local economic, cultural and night time economy strategies and works side by side with local planning policies. 2.10It is important that licensing and planning policies work in harmony to support vibrant, mixed-use areas, revitalise City Centre streets and unlock investment in the night-time economy.	New paragraphs to bring in the requirements of the National Licencing Policy Framework

		2.11 New paragraph detailing explicit adoption of Agent of Change Principle; new developments must mitigate noise; precedence of existing venues recognised	New paragraph
		2.13 New paragraph detailing the Council's commitment to tackling certain criminal behaviours particularly those against women but including other vulnerable groups	Update incorporating Council Motion
Applications for Licences		3.2 Removal of sentence referencing BOLD TYPE	Correction – removing reference to BOLD TYPE
		3.3 clarification on the requirements for the operating schedule	Update
		3.4 clarification on the requirements to tailor the operating schedule to the specific operation or special event.	Update
	3.5 paragraph removed		Check paragraph numbering going forward
		3.6 New paragraph pointing to flow charts in appendices 8 – flow chart showing application process, 9- flow chart showing process for full variation and 10 flow chart to show minor variation	New paragraph
	3.6	3.7 clarification on application process	Update
Right to Work	3.7	3.8 Expanded explanation; clarifies situation of licence lapsing if immigration status is time limited	Update
Variations	3.9	3.10	Update
Representations	4.3	4.3 clearer explanation on representations and whether objections are repetitive	Strengthened wording
Withholding personal details	4.4 & 4.5	4.4 & 4.5 Updated the approach: details only withheld where justified; removes the concept of “vicinity”	Update
	4.6	4.6 Expanded the explanation of role separation and transparency	Strengthened wording
	N/A	4.7 new paragraph detailing role of Home Office Immigration Enforcement as a Responsible Authority	New paragraph
Conditions	5.3	5.3 Clarification that model conditions are not standard and that there must be a legal basis for any condition based on the licencing objectives	Update
	N/A	5.4 new paragraph clarifying that conditions must be relevant to the application; must promote the	New paragraph

		licencing objectives; cannot be used as an alternative to a review	
	5.4	5.5	Numbering change
Determining Applications	N/A	7 Determining Applications	New section to bring in the requirements of the National Licensing Policy Framework
	N/A	7.1 Confirmation that where there are no representations there is no discretion other than to grant the application.	Alignment with National Licensing Policy Framework
	N/A	7.2 Clarifying the process when relevant representation are made	Alignment with National Licensing Policy Framework
	N/A	7.3 recognition of the need to protect communities and the licensing objectives while adopting the strategic direction of the NLPF	Alignment with National Licensing Policy Framework
	N/A	7.4 confirmation of aim to follow the strategic direction put forward in the NLPF	Alignment with National Licensing Policy Framework
Service Standards	N/A	8 Service Standards	Adoption of service standards
Service Standards	N/A	8.1 response time to emails and phone calls	New paragraph
	N/A	8.2 ensuring hearings are held within statutory deadlines	New paragraph
	N/A	8.3 timescale for sending out new/amended licences	New paragraph
	N/A	8.4 timescale for releasing written decisions	New paragraph
Need for licensed premises	7. Need for licensed premises	9. Need for licensed premises	Numbering change
The impact of licensed premises	8. Impact of licensed premises	10 The impact of licensed premises	Numbering change
	8.1	10.1 added the nature and locality and the proximity of residents Removal of reference to toilet facilities	Deletion - toilet facilities dealt with under other legislation &

			building control
	8.2	10.2 clarifying the use of conditions to mitigate adverse impacts	Update
	9 Cumulative impact section removed		Deletion - dealt with in para 31.1 to 31.7 below
Advice and guidance	10 Advice and guidance	11 Advice and guidance	Numbering change
Reviews of Licences and certificates	11 Reviews of Licences	12 Review of Licences	Numbering change
	11.1	12.1 Clarification on mediation arrangements	Update
	11.2	12.2 Clarification of notification of problems to licence holders	Update
Enforcement	12 Enforcement	13 Enforcement	Numbering change
	13.3	13.3 Linking policy to Council enforcement Policy	Update
	13.4	13.4 Clarification of information sharing between the Council and the police	Update
Management of licensed premises	13 Management	14 Management	Numbering change
Live music, dancing and theatre	14 Live music, dancing and theatre	15 Live music, dancing and theatre	Numbering change
	N/A	15.2 new paragraph welcoming applications that promote live music, theatre, dancing etc	Alignment with National Licensing Policy Framework
	14.2	15.3	Numbering change
	14.3	15.4	Numbering change
	14.5 & 14.6	15.5 & 15.6	Numbering change
Temporary Event notices	15 Temporary Event notices	16 Temporary Event notices	Numbering change
	15.1	16.1 clarification on the use of outdoor areas and the number of TEN applications that can be made	Update
	15.2	16.2 clarifications on application methods TENS and late TENS	Update
Special events	15.4	16.4 updates to advice on large-scale temporary events	Update
Sexual Entertainment	16 Sexual Entertainment	17 Sexual Entertainment	Numbering change
	16.4	17.4 confirmation of the need to obtain a licence under the Police and	Update

		Crime Act 2009 under particular circumstances	
Eating and drinking outside premises	18.1	19.1 improving protections to residents	Update
	18.2	19.2 review of requirement for control measures	Update
	18.3	19.3 Updating detail of legislative requirements for tables and chairs etc on the highway	Update
Premises Selling alcohol for consumption off the premises	N/A	20 Premises Selling alcohol for consumption off the premises	New paragraph
	N/A	20.1 allowing imposition to conditions of certain strengths of alcoholic drinks to control street drinking, associated crime, disorder, ASB	New paragraph – following review of Council motion
Section B – Licensing Objectives	19 Overview	21 Overview	Numbering change
Objective – prevention of crime and disorder	20 Objective – prevention of crime and disorder	22 Objective – prevention of crime and disorder	Numbering change
	20.3	22.3 removal of factors: public drunkenness litter	Update
	20.4	22.4 including control measures: - updating adoption of best practice for safer clubbing etc - permitting military ID cards and digital ID (when legally able to do so)	Update
	20.5	22.5 paragraph deleted	now detailed above in 4.7
Model Conditions	21 Model Conditions	23 Model Conditions	Numbering change
Objective – public safety	22 Objective – public safety	24 Objective – public safety	Numbering change
	22.3	24.3 added requirement to consider the safety of staff travelling home after work late night; removal of requirement for public liability insurance	Update incorporating Council Motion
	22.4	24.4 control measures reviewed including arrangements for subsidising safe travel for staff after late night work	Update incorporating Council Motion
Model Conditions (public safety)	23 Model Conditions (public safety)	25 Model Conditions (public safety)	Numbering change

Objective – prevention of public nuisance	24 Objective – prevention of public nuisance	26 Objective – prevention of public nuisance	Numbering change
	24.7	26.7 reviewing factors to be considered in preventing public nuisance	Update
	24.8	26.8 reviewing control measures	Update
Section D cumulative impact	29.1	31.1 paragraph updated to clarify the definition of cumulative impact	Alignment with National Licensing Policy Framework
	29.2	31.2 Clarification that “need” is not part of the consideration for a licencing policy statement	Alignment with National Licensing Policy Framework
	N/A	31.3 Provision to consider a cumulative impact special policy at a later date	Alignment with National Licensing Policy Framework
	29.3	31.4 Revision of the mechanisms for controlling bad or unlawful behaviour	Update
	N/A	31.6 confirmation that any special policy on cumulative impact must be evidence based	New paragraph
	29.6	31.8 removal of paragraph as no longer relevant	Deletion
	29.7	31.9 deleted as repeats 31.6	Deletion
Section E – hours of trading	30.2	32.2 Excerpts from Secretary of States guidance updated.	Updated
	30.3	32.3 clarification of trading hours for licensed activities only	Updated
	30.5 paragraph deleted		Deletion
	30.6	32.5 clarification on the consideration of relevant representations for opening times	Updated
Section F – toilet facilities	31.1 to 31.5 toilet facilities	Section/ paragraphs removed as dealt with by other legislation	Deletion
Appendices	Appendix 1 – toilet facilities	Deleted as dealt with by other legislation	Deletion
	Appendix 2 Draft pool of model conditions relating to the prevention of crime and disorder	Appendix 1 - 21. & 22 removed as Fire Safety Reform Order 2005 - capacities unenforceable if are legally required under a Fire Risk Assessment but can still be included on grounds of crime and disorder	Updated
	Appendix 2 Para 30	Appendix 1; 28 removed as already a mandatory condition	Updated
	Appendix 3 model conditions relating to public safety	Appendix 2; 1-14, 19-21, 26-34.4 and 42-68 are all covered by other legislation whether under Health & Safety or Fire Safety legislation.	Updated

	Appendix 4 model conditions relating to public nuisance	Appendix 3; 5. removed as not a licensable activity	Updated
	Appendix 7 Glossary of terminology	Appendix 6; Removal of definition of "Entertainment facilities"	Updated
	Appendix 8 Responsible authorities	Appendix 7; Details updated	Updated
		Appendix 8 Flow chart to assist applicants for new Premises Licences	New Appendix
		Appendix 9 Flow chart to assist applicants for full variations	New Appendix
		Appendix 10 Flow chart to assist applicants for minor variations	New Appendix